

Terms and Conditions for the Use of XL Driver Library Software License

(hereinafter "*Terms and Conditions*")

1. Software, License and License Restrictions

Vector Informatik GmbH, Ingersheimer Strasse 24, 70499 Stuttgart, Germany, (hereinafter "**Vector**") provides customers with the XL Driver Library in object code form and the related documentation (hereinafter collectively "**XL Driver Library**") together with related sample source codes (hereinafter "**Sample Source Codes**") free of charge.

Unless Vector has expressly consented to them in writing, any provisions in writing, customer's standard terms and conditions which conflict with, vary from or add to these Terms and Conditions will not become part of the contract between Vector and customers.

Vector grants customers the non-exclusive, non-transferable and temporally unlimited right

- 1.1. in source code form, to use and modify the Sample Source Codes solely to establish the compatibility of customers' executable programs;
- 1.2. in object code form, to integrate the XL Driver Library into any executable programs.

The DLLs (dynamic linked libraries) of the XL Driver Library may not be distributed solely or as part of any programs without a previous written individual agreement with Vector. For such individual use cases, please contact support@vector.com.

Customers shall not claim any rights whatsoever (either in full or in part) against Vector with regard to any of customer's modifications of any nature whatsoever of the XL Driver Library that customers may have performed, and Vector shall in no way be subjected to restrictions in its own further development of the XL Driver Library and/or the Sample Source Codes in any way.

2. Software Protection

Customers shall refrain from reverse engineering, decompiling or disassembling the XL Driver Library, except as to the extent permitted by law.

Customers shall refrain from removing or altering any copyright notices and shall not directly or indirectly develop any software similar to and / or derived from the XL Driver Library, and distribute such products directly or indirectly or in any other way.

Customers acknowledge that the XL Driver Library and the Sample Source Codes – including future versions of the XL Driver Library and the Sample Source Codes – are protected by copyright and are the intellectual property of Vector. All rights not expressly granted to customers under these Terms and Conditions or under an individual agreement shall remain with Vector. Customers shall ensure protection of the XL Driver Library and the Sample Source Codes against misuse with no limit in time.

3. No Remedy of Defects, Replacement nor Maintenance

As Vector provides the XL Driver Library and the Sample Source Codes “as is” and free of charge, Vector shall not be obliged to remedy any errors and defects or to replace defective software. In addition, Vector shall not be obliged to provide maintenance services and/or to provide updates for the XL Driver Library.

4. Vector’s Liability

Vector’s liability based on whatever legal reason, whether for breach of contract, liability in tort or otherwise, shall be governed by the following: Vector shall be liable for direct and/or consequential damages due to a material defect or defect of title, including infringement of third party rights, only in case of intent; or to the extent Vector has fraudulently concealed the defect. In all other cases, Vector shall only be liable for intent or gross negligence. Claims based on a breach of contractual obligations which must be met in order to achieve a proper execution of the contract and on which the contractual partner can regularly rely on (Cardinal Obligation), claims for damages resulting from injury to life, the body or health, claims based on a breach of a guarantee given by Vector as well as claims based on mandatory provisions of product liability law, in particular the German Product Liability Act, shall remain unaffected.

In the event that Vector and customer are jointly liable to a third party, customer will be liable vis-à-vis Vector for all loss or damage based on product liability or manufacturer’s liability. This does not apply to the extent Vector is liable pursuant to section 4, 1st paragraph.

5. Samples, Tests and High Risk Activities

The Sample Source Codes provided with the XL Driver Library are only intended to illustrate application possibilities. They are not provided for the purpose of using them in and/or integrating them into any programs without any configuration and/or modifications. Customers shall test any programs in which the XL Driver Library, the Sample Source Codes and/or any of Customer’s modifications thereto are integrated with diligent care.

The XL Driver Library and the Sample Source Codes are not fault-tolerant and are not designed, programmed or intended for use or redistribution of the XL Driver Library and/or the Sample Source Codes in a field of use of products or services that fall into the categories of ultra-hazardous applications, requiring fail-safe performance, such as, without limitation, nuclear power, aerospace and aviation, chemical and/or biological reactors, petrochemical industry, military industry, weapon systems, direct life support machines, in which the failure of the XL Driver Library and/or the Sample Source Codes could lead directly to death, personal injury, or severe physical or environmental damage (hereinafter “**High Risk Applications**”). Vector shall not

be liable under any legal theory for (i) failure to meet expectations and/or assumptions of the Customer related to the use or fitness of the XL Driver Library and/or the Sample Source Codes for High Risk Applications; and/or (ii) any and all costs, damages, and losses arising out of or in connection with the use of the XL Driver Library and/or the Sample Source Codes for High Risk Applications. If the Customer decides to use the XL Driver Library and/or the Sample Source Codes for any High Risk Applications, the Customer agrees to indemnify, defend, and hold Vector harmless from and against any and all costs, damages, and losses related to that use.

6. Miscellaneous

Should these Terms and Conditions become invalid in whole or in part, the validity of the remaining provisions shall not be affected thereby. Vector and customer undertake to agree, in place of the invalid provision, on a valid contractual provision that comes as close as possible to the intent and commercial purpose of the invalid contractual provision. The same applies in the case of an intended gap.

These Terms and Conditions may not be modified, amended, nor waived, except by a written individual agreement duly executed by the parties hereto.

These Terms and Conditions and their interpretation shall conform with and be governed by the laws of Germany to the exclusion of its conflicts of law provisions and the United Nations Convention on Contracts for the International Sale of Goods (CISG). All disputes arising out of or in connection with these Terms and Conditions shall be finally settled by the courts of Stuttgart, Germany.